

HOUSE No. 2385

The Commonwealth of Massachusetts

PRESENTED BY:

Leigh Davis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a special commission on avian influenza (H5N1).

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>1/15/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>2/18/2025</i>
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>4/21/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/12/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>3/9/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>5/20/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>3/5/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>3/31/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>3/10/2025</i>
<i>Steven J. Ouellette</i>	<i>8th Bristol</i>	<i>4/24/2025</i>
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>3/10/2025</i>

HOUSE No. 2385

By Representative Davis of Great Barrington, a petition (accompanied by bill, House, No. 2385) of Leigh Davis and others for an investigation by a special commission (including members of the General Court) relative to mitigating the risks of avian influenza also known as H5N1. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a special commission on avian influenza (H5N1).

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to mitigate the risks of avian influenza also known as H5N1 in the Commonwealth, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public health.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 (a) There shall be a special commission established to develop strategies, policies and
2 recommendations to mitigate the risks of avian influenza also known as H5N1 in the
3 commonwealth. The commission shall seek to (i) assess the risks and impacts of avian influenza
4 H5N1 in the commonwealth; (ii) develop and recommend policies for prevention, control and
5 response to avian influenza H5N1 in the commonwealth; and (iii) coordinating efforts among
6 government agencies, agricultural stakeholders and public health entities in the commonwealth
7 to avian influenza H5N1.

8 (b) The commission shall consist of 15 members that shall include: (i) the secretary of
9 health and human services or the secretary's designee, who shall serve as chair; (ii) the

10 commissioner of the department of public health or their designee; (iii) the commissioner of the
11 department of agricultural resources or their designee; (iv) the director of the division of fisheries
12 and wildlife or their designee; (v) the director of the Massachusetts emergency management
13 agency or their designee; (vi) 2 members appointed by the Massachusetts Veterinary Medical
14 Association, 1 of whom shall be a veterinarian specializing in avian health appointed and 1 of
15 whom shall be a veterinarian specializing in dairy health; (vii) 2 members appointed by the
16 commissioner of the department of agricultural resources, 1 of whom shall be a poultry farmer or
17 a representative from the Massachusetts poultry industry and 1 of whom shall be a dairy farmer
18 or a representative from the Massachusetts dairy industry; (viii) 2 members appointed by the
19 governor, 1 one of whom shall be an academic expert in virology and 1 of whom shall be an
20 academic expert in zoonotic diseases; (ix) the director of the Massachusetts Bureau of Infectious
21 Disease and Laboratory Sciences or the director's designee; (x) 2 members appointed by the
22 Massachusetts Municipal Association, Inc. that shall be local health officials, 1 of whom shall be
23 an official working in an urban area and 1 of whom shall be an official working in a rural
24 community, defined as municipalities with population densities of less than 500 persons per
25 square mile or a population of less than 7,000 persons, in each case as shown in the most recent
26 U.S. decennial census; and (xi) 1 member appointed by the secretary of health and human
27 services that shall be an advocate for vulnerable populations.

28 (c) The work of the commission shall include, but not be limited to: (i) studying the
29 prevalence and risk factors associated with H5N1 in the commonwealth; (ii) developing
30 surveillance programs to detect and track outbreaks of H5N1 in wildlife, poultry, dairy cattle and
31 humans; (iii) recommending policies for biosecurity measures in agricultural settings; (iv)
32 proposing guidelines for wildlife management to prevent disease spread; (v) developing

emergency response plans for outbreaks, including quarantine measures, vaccination strategies and public education campaigns; (vi) raising awareness about the risks of H5N1 and promote preventive practices among farmers, wildlife sanctuary managers, health professionals and the public; (vii) facilitate communication and collaboration among federal, state and local agencies, as well as private stakeholders.

(d) The commission shall have the authority to: (i) request data and support from state agencies as needed; and (ii) engage external consultants or experts as necessary.

(e) The commission shall do research and provide recommendations for the report pursuant to subsection (f) on the following subjects: (i) shoring up of stockpiles of the full range antiviral drugs capable of targeting H5N1, beyond Tamiflu, to guard against viruses mutating around one medication while staying susceptible to another; (ii) building up a more complete therapeutic arsenal to serve as a strategic hedge against H5N1's potentially high-impact threat; (iii) preparation to launch statewide clinical trials that swiftly evaluate the effectiveness of novel therapeutic approaches, such as anti-inflammatory or immune-system-modulating drugs, for patients who might become severely ill or hospitalized; (iv) production of self-administered swabs that can quickly detect H5N1 and tests to be distributed to farms where animals are raised and allowing workers to more efficiently screen themselves for the virus; and (v) possible compensation for ranch owners, farm owners and their workers for any losses stemming from employee absences when infections are identified.

(f) The commission shall prepare a report on its activities and on any findings and recommendations. The report shall be submitted to the: (i) secretary of transportation; (ii) chairs of the joint committee on transportation; (iii) commissioner of the department of public health;

55 (iv) chairs of the joint committee on public health; (v) chairs of the house and senate committees
56 on ways and means; and (vi) offices of the house and senate clerk not later than December 31,
57 2026.

58 (g) The commission shall be funded subject to: (i) appropriations and other money
59 authorized by the general court; and (ii) funds from public and private sources such as gifts,
60 grants and donations.

61 (f) The commission's appointments and first meeting shall take place not later than 60
62 days after its effective date.